

25TRCV02474 25TRCV02474

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C07%2F09%2F2026

Source SHA-256: 31ac9f3a19ad4b2195660301966cde8d6868aab053ca47829763d9a2d5d1ddb7

Case Number: 25TRCV02474 Hearing Date: July 9, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ANDREW HUDSON, M.D.

;

Plaintiff,

vs.

OLEG

VOLKOV

, et al.;

Defendants.

Case

No.:

25TRCV02474

Hearing

Date:

July
9, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

EUGENE STAVTSEV'S MOTION TO

MANDATE ELECTRONIC SERVICE WITHIN CURRENT PROCEEDINGS

MOVING PARTY: Defendant, Eugene Stavgsev

RESPONDING

PARTY: Plaintiff, Andrew Hudson,

M.D.

(1)

Defendant

Eugene Stavgsev's Motion to Mandate Electronic Service within Current
Proceedings is DENIED pursuant to California Rules of Court, rule 2.251(d)(3).

The Court considers the moving papers filed on April 8, 2026, the
opposition brief filed on July 1, 2026, and the reply brief filed on July 6,
2026.

BACKGROUND

Factual Background

On July 29, 2025, plaintiff

Andrew Hudson, M.D., ("Plaintiff") filed a Complaint against defendants Oleg
Volkov and Eugene Stavgsev (collectively, "Defendants"). The Complaint includes the following causes
of action: (1) Personal Rights Pursuant to Civ. Code § 43; (2) Defamation

Common Law and Pursuant to Civ. Code § 45 and Pursuant to Civ. Code § 46; (3) Defamation Per Se Libel Pursuant to Civ. Code § 45; (4) Defamation Per Se Slander Pursuant to Civ. Code § 46(1)(3)(5); (5) Assault and Threats to Kill Pursuant to Civ. Code § 1708; (6) Stalking, Harassment, Substantial Emotional Distress, Pursuant Civ. Code § 1708(b)(1)-(7); (7) Intentional Interference with Prospective Economic Advantage; and (8) Injunctive Relief.

On January 12, 2026, the Court granted Stavtsev's Special Motion to Strike as to all causes of action, except for the fifth cause of action for assault. (January 12, 2026 Minute Order, p. 10.) As a result, all claims against Stavtsev, other than the fifth cause of action for assault, were stricken. (January 12, 2026 Minute Order, p. 10.)

On February 11, 2026, the Court granted Stavtsev's Motion for Attorney's Fees, awarded in the reduced amount of \$20,100.00. (February 11, 2026 Minute Order, p. 7.)

On May 7, 2026, Plaintiff filed a Notice of Change of Address, notifying the Court and opposing parties that his new address is "State of California Confidentiality Address Program #2889, P.O. Box 1318, Sacramento, CA 95812." (Notice of Change of Address, p. 1.)

On May 13, 2026, the Court declared Plaintiff to be a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(1). (May 13, 2026 Minute Order, p. 9.)

Procedural Background

On April 8, 2026, Stavtsev filed the motion. On July 1, 2026, Plaintiff filed an opposition brief. On July 6, 2026, Stavtsev filed a reply brief.

LEGAL STANDARD

"If a court has adopted local rules for permissive electronic filing, then the court may, on the motion of

any party or on its own motion, provided that the order would not cause undue hardship or significant prejudice to any party, order all parties in any class action, a consolidated action, a group of actions, a coordinated action, or an action that is complex under rule 3.403 to serve all documents electronically, except when personal service is required by statute or rule.” (Cal. Rules of Court, rule 2.251(d)(1).)

UNTIMELY

OPPOSITION

“All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days, and all reply papers at least five court days before the hearing.” (Code Civ. Proc., § 1005, subd. (b).)

Given that the motion is scheduled to be heard on July 9, 2026, Plaintiff was required to file and serve an opposition brief by June 25, 2026. However, Plaintiff submitted the opposition on July 1, 2026, which was five court days before the hearing.

Typically, the Court would exercise its discretion to consider an opposition brief that is filed a couple of days late, particularly when the moving party submits a reply brief. (See Cal. Rules of Court, rule 3.1300(d).) In this instance, however, Plaintiff’s opposition was submitted several court days after the deadline, which forced Stavtsev to file a late reply brief only three court days before the hearing. Therefore, the Court declines to exercise its discretion to consider the opposition brief, as doing so would be prejudicial.

DISCUSSION

Stavtsev requests that the Court issue an order requiring electronic service of all documents in the current proceedings pursuant to California Rules of Court, rule 2.251(d)(1). (Notice of Motion, p. 2:6-9; Motion, pp. 11:6-9, 15:18-16:3.) However, this rule allows the Court to mandate electronic service only in specific types of cases, including class actions, consolidated actions, group actions, coordinated actions, or complex actions under California Rules of Court, rule 3.403. Stavtsev does not claim that this case falls into any of these categories.

Accordingly, the Court DENIES Stavtsev’s motion. Nevertheless, the Court reminds Plaintiff

that if the currently listed address, "State of California Confidentiality Address Program #2889, P.O. Box 1318, Sacramento, CA 95812," is no longer accurate, Plaintiff must file a notice of change of address with the Court and serve it on all parties.

ORDERS

1) Defendant

Eugene Stavtsev's Motion to Mandate Electronic Service within Current Proceedings is DENIED.

IT IS SO ORDERED.

DATED: July 9, 2026

Tamara
Hall

Judge
of the Superior Court